

A. This is a combined synopsis/solicitation for commercial items prepared in accordance with the format in Federal Acquisition Regulation (FAR) Subpart 12.6, as supplemented with additional information included in this notice, FAR Part 12, Acquisition of Commercial Items (Title VIII of the Federal Acquisition Streamlining Act of 1994) (Public Law 103-355). This announcement constitutes the only solicitation; quotes are being requested, and a written solicitation will not be issued.

B. The Great Plains Area Indian Health Service (IHS) intends to award a Firm-Fixed Price, Purchase Order to provide Solid Waste pickup (Garbage), with a Base Period and Four (4), Option Years in response to Request for Quote (RFQ) 75H70626Q00030.

C. This solicitation document and incorporated provisions and clauses are those in effect through Federal Acquisition Circular 2025-06 on October 1, 2025.

D. This RFQ is issued as 100% Indian Small Business Economic Enterprise (ISBEE) Set-Aside, and the associated NAICS Code is #562111, code for Solid Waste Collection, size standards in millions of dollars \$47.0. Quoter is required to fill out the attached INDIAN FIRM REPRESENTATION FORM.

E. The quoted unit pricing must be all inclusive (including, but not be limited to, travel, lodging, per diem, fringe benefits, federal, state and local taxes) plus all other costs pertinent to the performance of this contract. Utilize your most competitive and reasonable rates.

See the attached SF-1449: Complete, sign and return the SF-1449 for the Quote #75H70626Q00030 to provide Solid Waste pickup (Garbage).

Quotes will be valid until June 30, 2026.

F. Firm Fixed Price, Purchase Order to provide Solid Waste pickup (Garbage), for the Quentin N Burdick Memorial Healthcare Facility 1300 Hospital Loop Belcourt North Dakota 58316. See the Statement of Work (SOW) attached. The period of performance will be a Base Period with Four (4), Option Years .

G. FAR 52.212-1 Instructions to Offerors-Commercial Products and Commercial Services (SEP 2023).

Quotes shall be submitted on company letterhead stationery, signed, dated and it shall include:

1. Solicitation number: 75H70626Q00030
2. Closing Date: April 26, 2026 at 12:00 pm CST.
3. Name, address and telephone number of company and email address of contact person.
4. Technical description of the item/service being offered in sufficient detail to evaluate compliance with the requirements of the solicitation. This may include product literature, or other documents, if necessary.
5. Terms of any express warranty.
6. Price and any discount terms.
7. "Remit to" address, if different than mailing address.
8. Acknowledgment of Solicitation Amendments (if any issued)
9. Past performance information, when included as an evaluation factor, to include recent and relevant contracts for the same or similar items and other references (including contract numbers, points of contact with telephone numbers and other relevant information).
10. A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation. Offerors that fail to furnish required representations or information or reject the terms and conditions of the solicitation may be excluded from consideration.

H. FAR 52.212-2 Evaluation-Commercial Products and Commercial Services (DEVIATION Oct 2025); attached in full text.

Basis of Award: Best Value with Lowest Price Technical Acceptable.

The Government will evaluate quotations utilizing the procedures of FAR 13.106-2 Evaluation of quotations or offers. Offers will be evaluated for

acceptability but not ranked using the non-price factors/sub-factors. All non-price factors and sub-factors will be rated as either

“acceptable” or “unacceptable”. The Government intends to evaluate and make an award without discussion with the offerors other than minor clarifications, unless discussions are determined to be necessary. A decision on the technical acceptability of each offeror’s quotations will be made. For those offerors which are determined to be technically acceptable, award will be made to that vendor with the lowest overall prices.

The LPTA evaluation process will be accomplished as follows - Technical Acceptability will be comprised of three subfactors:

1. Meeting all areas under the Statement of Work (SOW) which are consistent in the scope with Solid Waste Management.
2. Price: The Pricing Schedule must be completed for all the line items and will be evaluated as to completeness and reasonableness. The offeror with the lowest technically acceptable prices represents the best value to the Government.
3. Past Performance: The offeror’s performance on contracts completed during the past three (3) years and all contracts are currently in progress for Solid Waste Management.

I. FAR 52.212-4 Contract Terms and Conditions-Commercial Products and Commercial Services

(Nov 2023). Applied to this acquisition and it’s incorporated by reference

J. FAR 52.214-16 Minimum Bid Acceptance Period (April 1984). See attachment for full text.

K. Attached are the Federal Acquisition Regulations (FAR) & Health & Human Services Acquisition Regulation (HHSAR) clauses that are applicable, including below.

L. Submit proposal to:

Quentin N Burdick Memorial Healthcare Facility Attn: Jody Keplin, Purchasing Agent

1300 Hospital Loop

Belcourt, ND 58316

Email: jody.keplin@ihs.gov

Questions regarding to this solicitation shall be submitted in writing by either email to jody.keplin@ihs.gov. The last day to submit questions is April 19, 2026, before 12:00 pm, CT.

Invoice Processing Platform (IPP)

The Indian Health Service (IHS) is in the process of implementing an electronic invoicing system

In compliance with the Office of Management and Budget (OMB) M-15-19 memorandum “Improving Government Efficiency and Saving Taxpayer Dollars Through Electronic Invoicing” directing Federal agencies to adopt electronic invoicing as the primary means to disburse payment to vendors. Invoices submitted under any award resulting from this solicitation will be required to utilize the Invoice Processing Platform (IPP) in accordance with HHSAR 352.232-71, Electronic Submission and Processing of Payment Requests.

IPP is a secure, web-based electronic invoicing system provided by the U.S. Department of the Treasury's Bureau of the Fiscal Service, in partnership with the Federal Reserve Bank of St. Louis (FRSTL). Respondents to this solicitation are encouraged to register an account with IPP if they have not already done so. If your organization is already registered to use IPP, you will not be required to re-register- however, we encourage you to make sure your organization and designated IPP user accounts are valid and up to date.

The IPP website address is: <https://www.ipp.gov>

If you require assistance registering or IPP account access, please contact the IPP Helpdesk at (866) 973-3131 (M-F 8AM to 6PM ET), or IPPCustomerSupport@fiscal.treasury.gov

“Should the contractor feel that use of the IPP would be unduly burdensome, their response to this solicitation should include an explanation of this position for a determination by the contracting officer”.

ATTACHMENTS:

Combined Synopsis Notice SF-1449 Request for Quotes Statement of Work Provisions and Clauses

Indian Firm Representative Form

Wage Determination Number # _2015-5385

SCOPE OF WORK

SPECIFICATIONS AND GUIDELINES FOR SOLID WASTE MANAGEMENT SERVICES CONTRACT Quentin N. Burdick Memorial Health Care Facility

1. Introduction

This specification defines requirements for developing contracts for solid waste management services to serve Indian Health Service medical facilities and housing quarters.

2. Compliance

A. Disposal at Municipal Solid Waste Landfills: Documentation must be provided to prove that all solid waste collected from IHS facilities was properly disposed of at a municipal solid waste landfill (MSWLFs). All MSWLFs must comply with the federal regulations in 40 CFR Part 258 (Subtitle D of RCRA), or equivalent state or Tribal regulations. Federal MSWLF standards include but are not limited to:

1. Location restrictions ensure that landfills are built in suitable geological areas away from faults, wetlands, flood plains, or other restricted areas.
2. Liner requirements include a flexible membrane (geomembrane) overlaying two feet of compacted clay soil lining the bottom and sides of the landfill to protect groundwater and the underlying soil from leachate releases. Landfills utilizing EPA approved liner variances shall be considered.
3. Leachate collection and removal systems are constructed on top of the composite liner and removes leachate from the landfill for treatment and disposal.
4. Operating practices include compacting and covering waste daily with several inches of soil to help reduce odor; control litter, insects, and rodents; and protect public health.
5. Groundwater monitoring requires testing groundwater wells to determine whether waste materials have escaped from the landfill.
6. Closure and post closure care requirements include covering landfills and providing long-term care of closed landfills.
7. Corrective action provisions control and clean up landfill releases to achieve groundwater protection standards.
8. Financial assurance provides funding for environmental protection during and after landfill closure (i.e., closure and post-closure care).

B. Storage and Collection of Residential, Commercial, and Institutional Solid Waste: All storage and collection activities must comply with the federal regulations and guidelines in 40 CFR Part 243 (Subtitle D of RCRA), or equivalent state or Tribal regulations. Standards must include but are not limited to:

1. Storage:
 - (a) All solid waste shall be stored in such a manner that it does not constitute a fire, health, or safety hazard or provide food or harborage for vectors and shall be contained or bundled so as not to result in spillage.
 - (b) All solid waste containing food waste shall be securely stored in covered or closed containers which are nonabsorbent, leakproof, durable, easily cleanable (if reusable), and designed for safe handling.
 - (c) Containers shall be of adequate size and in sufficient numbers to contain all waste food, rubbish, and ashes that a residence or other establishment generates in the period of time between collections. Containers shall be maintained in a clean condition so that they do not constitute a nuisance, and to retard the harborage, feeding, and breeding of vectors.

(d) When serviced, storage containers should be emptied completely of all solid waste.

2. Operations:

- (a) All solid waste collection personnel should receive instructions and training in safe container and waste handling techniques, and in the proper operation of collection equipment.
- (b) Personal protective equipment such as gloves, safety glasses, respirators, and footwear should be used by collection employees, as appropriate. This equipment should meet the applicable provisions of the Occupational Safety and Health Administration Standards for Subpart I-- Personal Protective Equipment (29 CFR 1910.132 through 1910.137).
- (c) Scavenging should be prohibited at all times to avoid injury and to prevent interference with collection operations.
- (d) When conducting carryout collection, a leak proof and puncture-proof carrying container should be used to minimize the potential for physical contact between the collector and the solid waste or the liquids which may derive from it.

3. Collection:

- (a) Solid waste should not be allowed to remain in collection vehicles over 24 hours and should only be left in a vehicle overnight when this practice does not constitute a fire, health, or safety hazard.
- (b) Solid waste shall be collected with frequency sufficient to inhibit the propagation or attraction of vectors and the creation of nuisances. Solid waste which contains food waste shall be collected at a minimum of once during each week.
- (c) The collection of solid waste shall be conducted in a safe, efficient manner, strictly obeying all applicable traffic and other laws. The collection vehicle operator shall be responsible for immediately cleaning up all spillage caused by his operations, for protecting private and public property from damage resulting from his operations, and for creating no undue disturbance of the peace and quiet in residential areas in and through which he operates.
- (d) Records should be maintained detailing all costs (capital, operating, and maintenance) associated with the collection system. These records should be used for scheduling maintenance and replacement, for budgeting, and for system evaluation and comparison.
- (e) The collection system should be reviewed on a regular schedule to ensure that environmentally adequate, economical, and efficient service is maintained.
- (f) Solid waste collection systems should be operated in a manner designed to minimize fuel consumption.

3. **General Contract Specifications**

- A. Scope: The contractor shall provide all labor, equipment, supplies, materials, and incidentals, except as otherwise noted herein, necessary for the collection, transfer and disposal of solid wastes from those areas listed for the period of TBD to October 31, 2030.
- B. Description of Work: The work covered by these specifications consists of furnishing all necessary equipment, labor, supervision, and materials for performing all operations necessary for the collection, transportation, and disposal of all refuse specified in this contract, complete and in accordance with these specifications and subject to the terms and conditions of the contract.
- C. Location: This contract is to be performed in accordance with approved routes between the IHS facilities including the Hospital, Housing, and the approved landfill to be used.
- D. Performance of Work: Refuse collection and disposal will be conducted in conformity with applicable regulations to provide satisfactory protection of property and the environment. These regulations include but are not limited to the Resource Conservation and Recovery Act (RCRA), The Federal Facilities Compliance Act, 40 CFR Part 257 Classification of Solid Waste Disposal Facilities and Practices, and 40 CFR Part 258 Criteria for Municipal Solid Waste Landfills.

- E. Supervision: The contractor will provide competent supervision at all times when work is in progress. The contractor is responsible for scheduling and coordinating various trade activities. The contractor is responsible for assuring that all work accomplished and materials used are in accordance with the specifications.
- F. Contractor-Furnished Equipment:
1. The contractor will provide all necessary equipment required for performing the contract.
 2. All of the contractor's equipment will be equipped with proper safety and noise-limiting devices and will be in safe operating condition.
 3. Only qualified operators will be permitted to operate equipment.
- G. Applicable Publications, Laws, and Regulations: Unless specifically exempted by these specifications, all work accomplished under this contract will conform to the requirements of all applicable Federal, Tribal, State and local regulations pertaining to environmental protection and occupational safety and health.
- H. Inspection: All work performed, the methods and manner of performance, all areas assigned for use by the contractor, and all equipment, materials, and supplies used for the work, will be subject to inspection at any and all times by the contracting officer's authorized representatives. All notices of unsatisfactory conditions or services will be issued in writing to the contractor by the contracting officer.
- I. Collection of Waste:
1. Collection in Housing: Collection shall be made at 50 IHS owned quarters which have two containers per quarter. Pick up for quarters shall be two times per week on Tuesdays and Thursdays. Containers for all quarters are located at the front of each quarter near the curb in stands. All containers are IHS owned.
 2. Collection in Hospital: Collection and disposal of refuse collected from six dumpsters located at the hospital three times per week on Mondays, Wednesdays and Fridays. Dumpsters are located at the east side of Hospital. All dumpsters are IHS owned.
 3. Schedule of Operation: After the contract has been awarded and before work begins, the contractor will establish a schedule of proposed operations. This schedule will govern the days, and time of day collections will be made. The schedule will be subject to change, provided the proposed modification contributes toward a more satisfactory service. The schedule and modifications thereof must meet the contracting officer's approval.
 4. Hours of Operation: The contractor shall confine his operations to daylight hours commencing not earlier than 7:00 am and continuing not later than 4:30 pm.
- J. Transportation: All waste shall be transported from the collection point to the disposal area in closed packer-type bodies mounted on suitable trucks approved for hauling waste. Transportation equipment shall be in acceptable sanitary condition. Transportation equipment shall not exceed maximum weight limit restrictions.
- K. Containers: All containers and dumpsters are provided and owned by IHS.
- L. Vehicles: Only trucks specially designed for collecting waste and of type approved by the contracting officer will be used. The cost of maintenance and repair of the contractor-owned vehicles will be the sole responsibility of the contractor.

- M. Reports: Documentation must be provided to prove that all solid waste collected from IHS facilities was properly disposed of at municipal solid waste landfills (MSWLFs). Documentation shall be in the form of an approved bill of lading procedure with tipping fee receipts, and/or equivalent process as proposed by the contractor and approved by the contracting officer.
- N. Submittals: The contractor shall provide complete description of the process to be utilized for the collection, transfer, and disposal of solid waste. For the equipment, containers and methods of waste management shown below, the contractor shall submit **4 copies** of certifications, manufacturer's name, model numbers, landfill certification and/or any other pertinent information as may be necessary to completely describe the particular piece of equipment, container, method of operation, or final disposal of solid waste. Items furnished by the contractor must be approved in writing by the Contracting Officer prior to implementation.
1. Process for documenting all waste collected
 2. Process for documenting all waste transferred
 3. Process for documenting all waste compliantly disposed of
 4. Certifications for all MSWLF's to be utilized
 5. Collection equipment
 6. Waste transfer equipment
 7. Operator/Driver qualifications
 8. Route structure

All proposals that are received for the contract are to be evaluated from lowest to highest and with the capabilities to accomplish all that is listed in the SOW for the facility pertaining to the operations and collection of waste that is listed in the SOW. Contractor(s) will make sure collections are made 3 times a week per week for Hospital twice a week for Housing. Contractor will be no farther than 1 hour away from the facility in case of emergent pick up.

O. Authority

- 1.1. No person other than the Contracting Officer has authority to bind the Government with respect to this contract.
- 1.2. No action or omission of any government employee or representative other than the Contracting Officer shall increase or decrease the scope of this contract or shall otherwise modify the terms and conditions of this contract.
- 1.3. In no event shall any of the following be effective or binding on the Government or imputed to the Contracting Officer with respect to this contract:
 - 1.3.1. An understanding or agreement between the Contractor and anyone other than the Contracting Officer;
 - 1.3.2. A purported modification or change order issued by anyone other than the Contracting Officer;
 - 1.3.3. A promise by anyone other than the Contracting Officer to provide additional funding or make payments; or
 - 1.3.4. An order, direction, consent, or permission from anyone other than the Contracting Officer to:
 - 1.3.4.1. Incur costs in excess of a specified estimated cost, allotment of funds, or other ceiling; or
 - 1.3.4.2. Expend hours in excess of a specified level of effort.

CLAUSES INCORPORATED BY REFERENCE

(Firm Fixed-Price, Non-Personal Service Type, Commercial)

FAR CITATION: 52.252-2: Clauses Incorporated by Reference. (FEB 1998)

I. Federal Acquisition Regulations (FAR) (48 CFR Chapter 1) Clauses

No.	FAR Citation	Clause Title	Clause Date
1.	52.202-1	Definitions	June 2020
2.	52.203-3	Gratuities	April 1984
3.	52.203-6- Alt I	Restrictions on Subcontractor Sales to the Government	November 2021
4.	52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions	September 2024
5.	52.203-12	Limitation on Payment to Influence Certain Federal Transactions	June 2020
6.	52.203-17	Contractor Employee Whistleblower Rights	November 2023
7.	52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	January 2017
8.	52.204-7	System for Award Management - Registration	DEVIATION November 2025
9.	52.204-13	System for Award Management - Maintenance	DEVIATION November 2025
10.	52.204-9	Personal Identity Verification of Contractor Personnel	January 2011
11.	52.204-19	Incorporation by Reference of Representations and Certifications	December 2014
12.	52.204-91	Contractor Identification	DEVIATION November 2025
13.	52.209-2	Prohibition on Contracting with Inverted Domestic Corporations – Representation	DEVIATION November 2025
14.	52.209-6	Protecting the Government’s Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded	DEVIATION November 2025
15.	52.209-10	Prohibition on Contracting with Inverted Domestic Corporations	DEVIATION November 2025
16.	52.211-17	Delivery of Excess Quantities	September 1989
17.	52.212-1	Instructions to Offerors – Commercial Products and Commercial Services	DEVIATION November 2025
18.	52.212-4	Contract Terms and Conditions - Commercial Products and Commercial Services	DEVIATION November 2025
19.	52.217-5	Evaluation of Options	DEVIATION November 2025
20.	52.219-1	Small Business Program Representations	DEVIATION November 2025
21.	52.219-6	Notice of Total Small Business Set-Aside	DEVIATION November 2025
22.	52.219-14	Limitations on Subcontracting	DEVIATION November 2025
23.	52.219-28	Postaward Small Business Program Rerepresentation	DEVIATION November 2025
24.	52.219-33	Nonmanufacturer Rule	DEVIATION November 2025
25.	52.222-3	Convict Labor	DEVIATION November 2025
26.	52.222-19	Child Labor – Cooperation with Authorities And Remedies	DEVIATION November 2025

27.	52.222-35	Equal Opportunity for Veterans	DEVIATION November 2025
28.	52.222-36	Equal Opportunity for Workers with Disabilities	DEVIATION November 2025
29.	52.222-37	Employment Reports on Veterans	DEVIATION November 2025
30.	52.222-50	Combating Trafficking in Persons	DEVIATION November 2025
31.	52.224-1	Privacy Act Notification	April 1984
32.	52.224-2	Privacy Act	April 1984
33.	52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving	May 2024
34.	52.232-33	Payment by Electronic Funds Transfer-System For Award Management	October 2018
35.	52.232-39	Unenforceability of Unauthorized Obligations	June 2013
36.	52.232-40	Providing Accelerated Payments to Small Business Subcontractors	March 2023
37.	52.233-2	Service of Protest	DEVIATION November 2025
38.	52.233-3	Protest After Award	DEVIATION November 2025
39.	52.233-4	Applicable Law for Breach of Contract Claim	DEVIATION November 2025
40.	52.237-1	Site Visit	April 1984
41.	52.237-2	Protection of Government Buildings, Equipment, and Vegetation	April 1984
42.	52.240-90	Security Prohibitions and Exclusions Representations and Certifications	DEVIATION November 2025
43.	52.240-91	Security Prohibitions and Exclusions	DEVIATION November 2025
44.	52.242-13	Bankruptcy	July 1995
45.	52.242-15	Stop-Work Order	August 1989
46.	52.244-6	Subcontracts for Commercial Products and Commercial Services	DEVIATION November 2025
47.	52.253-1	Computer Generated Forms	DEVIATION November 2025

CLAUSES INCORPORATED IN FULL TEXT

II. Federal Acquisition Regulations (FAR) (48 CFR Chapter 1) Clauses

No.	FAR Citation	Clause Title	Clause Date
1.	52.212-2	Evaluation-Commercial Products and Commercial Services	DEVIATION October 2025
2.	52.217-8	Option to Extend the Services	November 1999
3.	52.217-9	Option to Extend the Term of the Contract	March 2000
4.	52.232-18	Availability of Funds	April 1984
5.	52.232-19	Availability of Funds for the Next Fiscal Year	April 1984
6.	52.252-1	Solicitation Provisions Incorporated by Reference	February 1998
7.	52.252-2	Clauses Incorporated by Reference	February 1998

52.212-2 Evaluation—Commercial Products and Commercial Services.

As prescribed in 12.205(a)(2), insert a provision substantially as follows:

Evaluation—Commercial Products and Commercial Services (Deviation Date)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

[Insert evaluation factors in the relative order of importance. For requests for proposals, state: Evaluation factors other than price when combined are [significantly more important than price/approximately equal to price/significantly less important] than price. For invitations for bids, list only price and price-related factors.]

(b) *Options (if applicable)*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

52.217-8 Option to Extend Services.

As prescribed in [17.208](#)(f), insert a clause substantially the same as the following:

OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total

extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 60 days.

(End of clause)

52.217-9 Option to Extend the Term of the Contract.

As prescribed in [17.208\(g\)](#), insert a clause substantially the same as the following:

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within _60 days____; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least _60____ days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed _6/30/2030__ .

(End of clause)

52.232-18 Availability of Funds.

As prescribed in [32.706-1\(a\)](#), insert the following clause:

Availability of Funds (Apr 1984)

Funds are not presently available for this contract. The Government's obligation under this contract is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise until funds are made available to the Contracting Officer for this contract and until the Contractor receives notice of such availability, to be confirmed in writing by the Contracting Officer.

(End of clause)

52.232-19 Availability of Funds for the Next Fiscal Year.

As prescribed in [32.706-1\(b\)](#), insert the following clause:

Availability of Funds for the Next Fiscal Year (Apr 1984)

Funds are not presently available for performance under this contract beyond the Awarded Base Year_. The Government's obligation for performance of this contract beyond that date is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise for performance under this contract beyond _the Awarded Base Year_, until funds are made available to the Contracting Officer for performance and until the Contractor receives notice of availability, to be confirmed in writing by the Contracting Officer.

(End of clause)

52.252-1 Solicitation Provisions Incorporated by Reference.

As prescribed in [52.107\(a\)](#), insert the following provision:

SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): <https://www.acquisition.gov>

(End of provision)

52.252-2 Clauses Incorporated by Reference.

As prescribed in [52.107\(b\)](#), insert the following clause:

CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): <https://www.acquisition.gov>

(End of clause)

III. Department of HHS Acquisition Regulations (HHSAR) (49 Chapter 3) Clauses

No.	HHSAR Citation	Clause Title	Clause Date
1.	HHSAR 352.224-70	Privacy Act	December 2015
2.	HHSAR 352.226-1	Indian Preference	December 2015
3.	HHSAR 352.226-2	Indian Preference Program	December 2015
4.	HHSAR 352.232-71	Electronic Submission of Payment Requests	February 2022
5.	HHSAR 352.237-70	Pro-Children Act	December 2015
6.	HHSAR 352.237-71	Crime Control Act-Reporting of Child Abuse	December 2015
7.	HHSAR 352.237-74	Non-Discrimination in Service Delivery	December 2015

352.224-70 Privacy Act.

As prescribed in HHSAR 324.105(a), the Contracting Officer shall insert the following clause:

Privacy Act (DEC 2015)

This contract requires the Contractor to perform one or more of the following: (a) Design; (b) develop; or (c) operate a Federal agency system of records to accomplish an agency function in accordance with the Privacy Act of 1974 (Act) (5 U.S.C. 552a(m)(1)) and applicable agency regulations.

The term *system of records* means a group of any records under the control of any agency from which information is retrieved by the name of the individual or by some identifying number, symbol, or other identifying particular assigned to the individual. Violations of the Act by the Contractor and/or its employees may result in the imposition of criminal penalties (5 U.S.C. 552a(i)).

The Contractor shall ensure that each of its employees knows the prescribed rules of conduct in 45 CFR part 5b and that each employee is aware that he/she is subject to criminal penalties for violation of the Act to the same extent as Department of Health and Human Services employees. These provisions also apply to all subcontracts the Contractor awards under this contract which require the design, development or operation of the designated system(s) of records (5 U.S.C. 552a(m)(1)). The contract work statement:

(a) Identifies the system(s) of records and the design, development, or operation work the Contractor is to perform; and

(b) Specifies the disposition to be made of such records upon completion of contract performance.

(End of clause)

352.226-1 Indian Preference.

As prescribed in HHSAR 326.505(a), the Contracting Officer shall insert the following clause:

Indian Preference (DEC 2015)

(a) The Contractor agrees to give preference in employment opportunities under this contract to Indians who can perform required work, regardless of age (subject to existing laws and regulations), sex, religion, or tribal affiliation. To the extent feasible and consistent with the efficient performance of this contract, the Contractor further agrees to give preference in employment and training opportunities under this contract to Indians who are not fully qualified to perform regardless of age (subject to existing laws and regulations), sex,

religion, or tribal affiliation. The Contractor also agrees to give preference to Indian organizations and Indian-owned economic enterprises in the awarding of any subcontracts to the extent feasible and consistent with the efficient performance of this contract. The Contractor shall maintain the necessary statistical records to demonstrate compliance with this paragraph.

(b) In connection with the Indian employment preference requirements of this clause, the Contractor shall provide reasonable opportunities for training, incident to such employment. Such training shall include on-the-job, classroom, or apprenticeship training designed to increase the vocational effectiveness of an Indian employee.

(c) If the Contractor is unable to fill its employment and training opportunities after giving full consideration to Indians as required by this clause, the Contractor may satisfy those needs by selecting non-Indian persons in accordance with the clause of this contract entitled "Equal Opportunity."

(d) If no Indian organizations or Indian-owned economic enterprises are available under reasonable terms and conditions, including price, for awarding of subcontracts in connection with the work performed under this contract, the Contractor agrees to comply with the provisions of this contract involving utilization of small businesses; HUBZone small businesses; service-disabled, veteran-owned small businesses; 8(a) small businesses; veteran-owned small businesses; women-owned small businesses; or small disadvantaged businesses.

(e) As used in this clause,

(1) *Indian* means a person who is a member of an Indian tribe. If the Contractor has reason to doubt that a person seeking employment preference is an Indian, the Contractor shall grant the preference but shall require the individual provide evidence within 30 days from the tribe concerned that the person is a member of the tribe.

(2) *Indian tribe* means an Indian tribe, pueblo, band, nation, or other organized group or community, including Alaska Native village or regional or village corporation as defined in or established pursuant to the Alaska Native Claims Settlement Act (85 Stat. 688; 43 U.S.C. 1601) which the United States recognizes as eligible for the special programs and services provided to Indians because of its status as Indians.

(3) *Indian organization* means the governing body of any Indian Tribe or entity established or recognized by such governing body in accordance with the Indian Financing Act of 1974 (88 Stat. 77; 25 U.S.C. 1451).

(4) *Indian-owned economic enterprise* means any Indian-owned commercial, industrial, or business activity established or organized for the purpose of profit, provided that such Indian ownership shall constitute not less than 51 percent of the enterprise, and that ownership shall encompass active operation and control of the enterprise.

(f) The Contractor agrees to include the provisions of this clause, including this paragraph (f) of this clause, in each subcontract awarded at any tier under this contract.

(g) In the event of noncompliance with this clause, the Contracting Officer may terminate the contract in whole or in part or may pursue any other remedies authorized by law or by other provisions of the contract.

(End of clause)

352.226-2 Indian Preference Program.

As prescribed in HHSAR 326.505(b), the Contracting Officer shall insert the following clause:

Indian Preference Program (DEC 2015)

(a) In addition to the requirements of the clause of this contract entitled "Indian Preference," the Contractor agrees to establish and conduct an Indian preference program which will expand opportunities for Indians to receive preference for employment and training in connection with the work performed under this contract, and which will expand the opportunities for Indian organizations and Indian-owned economic enterprises to receive a preference in the awarding of subcontracts. In this connection, the Contractor shall perform the following:

(1) Designate a liaison officer who will maintain liaison with the Government and the Tribe(s) on Indian preference matters; supervise compliance with the provisions of this clause; and administer the Contractor's Indian preference program.

(2) Advise its recruitment sources in writing and include a statement in all employment advertisements that Indian applicants receive preference in employment and training incident to such employment.

(3) Not more than 20 calendar days after award of the contract, post a written notice setting forth the Contractor's employment needs and related training opportunities in the tribal office of any reservations on or near the contract work location. The notice shall include the approximate numbers and types of employees needed; the approximate dates of employment; any experience or special skills required for employment; training opportunities available; and other pertinent information necessary to advise prospective employees of any other employment requirements. The Contractor shall also request the tribe(s) on or near whose reservation(s) the Contractor will perform contract work to provide assistance filling its employment needs and training opportunities. The Contracting Officer will advise the Contractor of the name, location, and phone number of the Tribal officials to contact regarding the posting of notices and requests for Tribal assistance.

(4) Establish and conduct a subcontracting program which gives preference to Indian organizations and Indian-owned economic enterprises as subcontractors (including suppliers) under this contract. The Contractor shall give public notice of existing subcontracting opportunities and, to the extent feasible and consistent with the efficient performance of this contract, shall solicit bids or proposals from Indian organizations or Indian-owned economic enterprises only. The Contractor shall request assistance and information on Indian firms qualified as subcontractors (including suppliers) from the Tribe(s) on or near whose reservation(s) the Contractor will perform contract work. The Contracting Officer will advise the Contractor of the name, location, and phone number of the Tribal officials to contact regarding the request for assistance and information. Public notices and solicitations for existing subcontracting opportunities shall provide an equitable opportunity for Indian firms to submit bids or proposals by including -

(i) A clear description of the supplies or services required, including quantities, specifications, and delivery schedules that facilitate the participation of Indian firms;

(ii) A statement indicating that Indian organizations and Indian-owned economic enterprises will receive preference in accordance with section 7(b) of Public Law 93-638; 88 Stat. 2205; 25 U.S.C. 450e(b);

(iii) Definitions for the terms "Indian organization" and "Indian-owned economic enterprise" prescribed under the "Indian Preference" clause of this contract;

(iv) A statement that the bidder or offeror shall complete certifying that it is an Indian organization or Indian-owned economic enterprise; and

(v) A closing date for receipt of bids or proposals which provides sufficient time for preparation and submission of a bid or proposal. If, after soliciting bids or proposals from Indian organizations and Indian-owned economic enterprises, the Contractor receives no responsive bid or acceptable proposal, the Contractor shall comply with the requirements of paragraph (d) of the "Indian Preference" clause of this contract. If the Contractor receives one or more responsive bids or conforming proposals, the Contractor shall award the contract to the low, responsive, responsible bidder or conforming offer from a responsible offeror if the price is reasonable. If the Contractor determines the low responsive bid or conforming proposal's price is unreasonable, the Contractor shall attempt to negotiate a reasonable price and award a subcontract. If parties cannot agree on a reasonable price, the Contractor shall comply with the requirements of paragraph (d) of the "Indian Preference" clause of this contract.

(5) Maintain written records under this contract which demonstrate -

(i) The numbers of Indians seeking employment for each employment position available under this contract;

(ii) The number and types of positions filled by Indians and non-Indians;

(iii) The total number of Indians employed under this contract;

(iv) For those positions having both Indian and non-Indian applicants, and a non-Indian is selected for employment, the reason(s) why the Contractor did not select the Indian applicant;

(v) Actions taken to give preference to Indian organizations and Indian-owned economic enterprises for subcontracting opportunities which exist under this contract;

(vi) Reasons why Indian subcontractors and or suppliers did not receive preference for each requirement where the Contractor determined that such preference was inconsistent with efficient contract performance; and

(vii) The number of Indian organizations and Indian-owned economic enterprises contacted, and the number receiving subcontract awards under this contract.

(6) Submit to the Contracting Officer for approval a quarterly report summarizing the Contractor's Indian preference program and indicating the number and types of available positions filled by Indians and non-Indians, and the dollar amounts of all subcontracts awarded to Indian organizations and Indian-owned economic enterprises, and to all other firms.

(7) Maintain records pursuant to this clause and keep them available for review by the Government for one year after final payment under this contract, or for such longer period in accordance with requirements of any other clause of this contract or by applicable law or regulation.

(b) For purposes of this clause, the following definitions of terms shall apply:

(1) The terms *Indian*, *Indian tribe*, *Indian organization*, and *Indian-owned economic enterprise* are defined in the clause of this contract entitled *Indian Preference*.

(2) *Indian reservation* includes Indian reservations, public domain Indian allotments, former Indian reservations in Oklahoma, and land held by incorporated Native groups, regional corporations, and village corporations under the provisions of the Alaska Native Claims Settlement Act (85 Stat. 688; 43 U.S.C. 1601 *et seq.*)

(3) *On or near an Indian reservation* means on a reservation or reservations or within that area surrounding an Indian reservation(s) where a person seeking employment could reasonably expect to commute to and from in the course of a work day.

(c) Nothing in the requirements of this clause shall preclude Indian tribes from independently developing and enforcing their own Indian preference requirements. Such requirements must not conflict with any Federal statutory or regulatory requirement dealing with the award and administration of contracts.

(d) The Contractor agrees to include the provisions of this clause, including this paragraph (d), in each subcontract awarded at any tier under this contract and to notify the Contracting Officer of such subcontracts.

(e) In the event of noncompliance with this clause, the Contracting Officer may terminate the contract in whole or in part or may pursue any other remedies authorized by law or by other provisions of the contract.

(End of clause)

332.232-71 Electronic Submission of Payment Requests.

As prescribed in HHSAR 332.7003, use the following clause:

Electronic Submission of Payment Requests (Feb 2022)

(a) *Definitions.* As used in this clause –

Payment request means a bill, voucher, invoice, or request for contract financing payment with associated supporting documentation. The payment request must comply with the requirements identified in FAR 32.905(b), “Content of Invoices” and the applicable Payment clause included in this contract.

(b) Except as provided in paragraph (c) of this clause, the Contractor shall submit payment requests electronically using the Department of Treasury Invoice Processing Platform (IPP) or successor system. Information regarding IPP, including IPP Customer Support contact information, is available at www.ipp.gov or any successor site.

(c) The Contractor may submit payment requests using other than IPP only when the Contracting Officer authorizes alternate procedures in writing in accordance with HHS procedures.

(d) If alternate payment procedures are authorized, the Contractor shall include a copy of the Contracting Officer's written authorization with each payment request.

(End of Clause)

352.237-70 Pro-Children Act

As prescribed in [HHSAR 337.103\(d\)\(1\)](#), the Contracting Officer shall insert the following clause:

Pro-Children Act (December 18, 2015)

(a) Public Law 103-227, Title X, Part C, also known as the **Pro-Children Act of 1994** (Act), 20 U.S.C. 7183, imposes restrictions on smoking in facilities where certain federally funded children's services are provided. The Act prohibits smoking within any indoor facility (or portion thereof), whether owned, leased, or contracted for, that is used for the routine or regular provision of: (i) kindergarten, elementary, or secondary education or library services or (ii) health or day care services that are provided to children under the age of 18. The statutory prohibition also applies to indoor facilities that are constructed, operated, or maintained with Federal funds.

(b) By acceptance of this contract or order, the Contractor agrees to comply with the requirements of the Act. The Act also applies to all subcontracts awarded under this contract for the specified children's services. Accordingly, the Contractor shall ensure that each of its employees, and any subcontractor staff, is made aware of, understands, and complies with the provisions of the Act. Failure to comply with the Act may result in the imposition of a civil monetary penalty in an amount not to exceed \$1,000 for each violation and/or the imposition of an administrative compliance order on the responsible entity. Each day a violation continues constitutes a separate violation.

(End of clause)

352.237-71 Crime Control Act—Reporting of Child Abuse.

As prescribed in [HHSAR 337.103\(d\)\(2\)](#), the Contracting Officer shall insert the following clause:

Crime Control Act of 1990—Reporting of Child Abuse (December 18, 2015)

(a) Public Law 101-647, also known as the Crime Control Act of 1990 (Act), imposes responsibilities on certain individuals who, while engaged in a professional capacity or activity, as defined in the Act, on Federal land or in a federally-operated (or contracted) facility, learn of facts that give the individual reason to suspect that a child has suffered an incident of child abuse.

(b) The Act designates “covered professionals” as those persons engaged in professions and activities in eight different categories including, but not limited to, teachers, social workers, physicians, dentists, medical residents or interns, hospital personnel and administrators, nurses, health care practitioners, chiropractors, osteopaths, pharmacists, optometrists, podiatrists, emergency medical technicians, ambulance drivers, alcohol or drug treatment personnel, psychologists, psychiatrists, mental health professionals, child care workers and administrators, and commercial film and photo processors. The Act defines the term “child abuse” as the physical or mental injury, sexual abuse or exploitation, or negligent treatment of a child.

(c) Accordingly, any person engaged in a covered profession or activity under an HHS contract or subcontract, regardless of the purpose of the contract or subcontract, shall immediately report a suspected child abuse incident in accordance with the provisions of the Act. If a child is suspected of being harmed, the appropriate State Child Abuse Hotline, local child protective services (CPS), or law enforcement agency shall be contacted. For more information about where and how to file a report, the Childhelp USA, National Child Abuse Hotline (1-800-4-A-CHILD) shall be called. Any covered professional failing to make a timely report of such incident shall be guilty of a Class B misdemeanor.

(d) By acceptance of this contract or order, the Contractor agrees to comply with the requirements of the Act. The Act also applies to all applicable subcontracts awarded under this contract. Accordingly, the Contractor shall ensure that each of its employees, and any subcontractor staff, is made aware of, understands, and complies with the provisions of the Act.

(End of clause)

352.237-74 Non-Discrimination in Service Delivery.

As prescribed in [HHSAR 337.103\(e\)](#), the Contracting Officer shall insert the following clause in solicitations and contracts:

Non-Discrimination In Service Delivery (December 18, 2015)

It is the policy of the Department of Health and Human Services that no person otherwise eligible will be excluded from participation in, denied the benefits of, or subjected to discrimination in the administration of HHS programs and services based on non-merit factors such as race, color, national origin, religion, sex, gender identity, sexual orientation, or disability (physical or mental). By acceptance of this contract, the contractor agrees to comply with this policy in supporting the program and in performing the services called for under this contract. The contractor shall include this clause in all sub-contracts awarded under this contract for supporting or performing the specified program and services. Accordingly, the contractor shall ensure that each of its employees, and any sub-contractor staff, is made aware of, understands, and complies with this policy.

(End of clause)



DEPARTMENT OF HEALTH & HUMAN SERVICES

Indian Health Service
Office of Management Services
Division of Acquisition Policy (DAP)
5600 Fishers Lane
Rockville, MD 20857

**INDIAN HEALTH SERVICE
BUY INDIAN ACT
INDIAN ECONOMIC ENTERPRISE
REPRESENTATION FORM**

SOLICITATION/SOURCES SOUGHT/RFI #: _____

PROJECT TITLE: _____

DATE: _____

In accordance with 25 U.S.C. 47 the Buy Indian Act, the signature below constitutes self-certification that the Offeror meets the definition of an “Indian Economic Enterprise” (HHSAR 326.601) in response to this Sources Sought Notice, Request for Information (RFI) or Solicitation and resultant contract.

The enterprise must meet the definition of “Indian Economic Enterprise” throughout the following time periods:

- (1) At the time an offer is made in response to this solicitation;
- (2) At the time of contract award; and
- (3) During the full term of the contract performance period. At any point during these periods, if the Contractor no longer meets the eligibility requirements, the contractor must provide immediate written notification to the Contracting Officer.

Individual Contracting Officers may require documentation of eligibility before awarding a set-aside or sole source contracts under the Buy Indian Act and awards may be subject to protest if the eligibility of the successful Offeror is in question. In addition to the self-certification requirements, successful Offerors must also be registered with the System of Award Management (SAM).

Any false or misleading information submitted by an enterprise when submitting an offer in consideration of an award set-aside under the authority of the Buy Indian Act is a violation of the law and punishable under 18 U.S.C. 1001. False claims submitted as part of contract performance are subject to the penalties enumerated in 31 U.S.C. 3729 to 3731 and 18 U.S.C. 287.

REPRESENTATION

The Offeror represents as part of its offer that it does _____, does not _____ meet the definition of an “Indian Economic Enterprise” with “Indian Ownership” under the authority of the Buy Indian Act.

Name of Federally Recognized Tribal Entity

Name of the 51% owner of IEE Firm

Business Name

Certifying Signature

DUNS Number

Print Name

Note: Contracts subject to the Service Contract Act are generally required to pay at least the applicable minimum wage rate required under Executive Order 14026 or Executive Order 13658.

If the contract is entered into on or after January 30, 2022, or the contract is renewed or extended (e.g., an option is exercised) on or after January 30, 2022: Executive Order 14026 generally applies to the contract. The contractor must pay all covered workers at least \$17.75 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025.

If the contract was awarded on or between January 1, 2015 and January 29, 2022, and the contract is not renewed or extended on or after January 30, 2022: Executive Order 13658 generally applies to the contract. The contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025.

The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under the Executive Orders is available at www.dol.gov/whd/govcontracts.

State: North Dakota

Area: North Dakota Counties of Barnes, Benson, Cavalier, Dickey, Eddy, Foster, Griggs, La Moure, Logan, McIntosh, Ramsey, Rolette, Stutsman, Towner, Wells

****Fringe Benefits Required Follow the Occupational Listing****

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		17.97
01012 - Accounting Clerk II		20.17
01013 - Accounting Clerk III		22.56
01020 - Administrative Assistant		26.82

01035 - Court Reporter	22.58
01041 - Customer Service Representative I	18.96
01042 - Customer Service Representative II	20.69
01043 - Customer Service Representative III	23.22
01051 - Data Entry Operator I	16.49***
01052 - Data Entry Operator II	17.99
01060 - Dispatcher, Motor Vehicle	27.04
01070 - Document Preparation Clerk	17.99
01090 - Duplicating Machine Operator	17.99
01111 - General Clerk I	18.50
01112 - General Clerk II	20.19
01113 - General Clerk III	22.66
01120 - Housing Referral Assistant	25.18
01141 - Messenger Courier	14.66***
01191 - Order Clerk I	16.49***
01192 - Order Clerk II	17.99
01261 - Personnel Assistant (Employment) I	20.19
01262 - Personnel Assistant (Employment) II	22.58
01263 - Personnel Assistant (Employment) III	25.18
01270 - Production Control Clerk	26.13
01290 - Rental Clerk	18.26
01300 - Scheduler, Maintenance	20.19
01311 - Secretary I	20.19
01312 - Secretary II	22.58
01313 - Secretary III	25.18
01320 - Service Order Dispatcher	24.18
01410 - Supply Technician	26.82
01420 - Survey Worker	22.58
01460 - Switchboard Operator/Receptionist	18.85
01531 - Travel Clerk I	15.82***
01532 - Travel Clerk II	16.67***
01533 - Travel Clerk III	18.76
01611 - Word Processor I	17.99
01612 - Word Processor II	20.19
01613 - Word Processor III	22.58
05000 - Automotive Service Occupations	
05005 - Automobile Body Repairer, Fiberglass	22.69
05010 - Automotive Electrician	23.41
05040 - Automotive Glass Installer	21.80
05070 - Automotive Worker	21.80
05110 - Mobile Equipment Servicer	18.64
05130 - Motor Equipment Metal Mechanic	24.79
05160 - Motor Equipment Metal Worker	21.80
05190 - Motor Vehicle Mechanic	24.79
05220 - Motor Vehicle Mechanic Helper	17.01***
05250 - Motor Vehicle Upholstery Worker	20.22
05280 - Motor Vehicle Wrecker	21.80
05310 - Painter, Automotive	23.41
05340 - Radiator Repair Specialist	21.80
05370 - Tire Repairer	17.73***
05400 - Transmission Repair Specialist	24.79
07000 - Food Preparation And Service Occupations	
07010 - Baker	17.65***
07041 - Cook I	18.00

07042 - Cook II	21.04
07070 - Dishwasher	13.07***
07130 - Food Service Worker	14.61***
07210 - Meat Cutter	18.13
07260 - Waiter/Waitress	13.14***
09000 - Furniture Maintenance And Repair Occupations	
09010 - Electrostatic Spray Painter	24.64
09040 - Furniture Handler	14.41***
09080 - Furniture Refinisher	24.64
09090 - Furniture Refinisher Helper	17.91
09110 - Furniture Repairer, Minor	21.29
09130 - Upholsterer	24.64
11000 - General Services And Support Occupations	
11030 - Cleaner, Vehicles	17.25***
11060 - Elevator Operator	17.99
11090 - Gardener	22.42
11122 - Housekeeping Aide	17.99
11150 - Janitor	17.99
11210 - Laborer, Grounds Maintenance	16.46***
11240 - Maid or Houseman	15.80***
11260 - Pruner	14.61***
11270 - Tractor Operator	20.46
11330 - Trail Maintenance Worker	16.46***
11360 - Window Cleaner	20.26
12000 - Health Occupations	
12010 - Ambulance Driver	18.33
12011 - Breath Alcohol Technician	26.69
12012 - Certified Occupational Therapist Assistant	33.50
12015 - Certified Physical Therapist Assistant	29.06
12020 - Dental Assistant	24.11
12025 - Dental Hygienist	40.17
12030 - EKG Technician	40.44
12035 - Electroneurodiagnostic Technologist	40.44
12040 - Emergency Medical Technician	18.33
12071 - Licensed Practical Nurse I	23.86
12072 - Licensed Practical Nurse II	26.69
12073 - Licensed Practical Nurse III	29.75
12100 - Medical Assistant	18.84
12130 - Medical Laboratory Technician	31.39
12160 - Medical Record Clerk	22.12
12190 - Medical Record Technician	24.74
12195 - Medical Transcriptionist	23.86
12210 - Nuclear Medicine Technologist	58.66
12221 - Nursing Assistant I	15.97***
12222 - Nursing Assistant II	17.95
12223 - Nursing Assistant III	19.59
12224 - Nursing Assistant IV	22.00
12235 - Optical Dispenser	22.21
12236 - Optical Technician	23.86
12250 - Pharmacy Technician	21.58
12280 - Phlebotomist	23.86
12305 - Radiologic Technologist	33.16
12311 - Registered Nurse I	26.09
12312 - Registered Nurse II	31.91

12313 - Registered Nurse II, Specialist	31.91
12314 - Registered Nurse III	38.61
12315 - Registered Nurse III, Anesthetist	38.61
12316 - Registered Nurse IV	46.29
12317 - Scheduler (Drug and Alcohol Testing)	33.06
12320 - Substance Abuse Treatment Counselor	31.45
13000 - Information And Arts Occupations	
13011 - Exhibits Specialist I	20.80
13012 - Exhibits Specialist II	25.76
13013 - Exhibits Specialist III	31.49
13041 - Illustrator I	20.80
13042 - Illustrator II	25.76
13043 - Illustrator III	31.49
13047 - Librarian	28.52
13050 - Library Aide/Clerk	16.54***
13054 - Library Information Technology Systems Administrator	25.76
13058 - Library Technician	15.30***
13061 - Media Specialist I	18.59
13062 - Media Specialist II	20.79
13063 - Media Specialist III	23.18
13071 - Photographer I	18.59
13072 - Photographer II	20.79
13073 - Photographer III	25.76
13074 - Photographer IV	31.49
13075 - Photographer V	38.10
13090 - Technical Order Library Clerk	20.79
13110 - Video Teleconference Technician	18.67
14000 - Information Technology Occupations	
14041 - Computer Operator I	21.90
14042 - Computer Operator II	24.49
14043 - Computer Operator III	27.32
14044 - Computer Operator IV	30.36
14045 - Computer Operator V	33.62
14071 - Computer Programmer I (see 1)	18.90
14072 - Computer Programmer II (see 1)	22.00
14073 - Computer Programmer III (see 1)	26.91
14074 - Computer Programmer IV (see 1)	
14101 - Computer Systems Analyst I (see 1)	25.35
14102 - Computer Systems Analyst II (see 1)	
14103 - Computer Systems Analyst III (see 1)	
14150 - Peripheral Equipment Operator	21.90
14160 - Personal Computer Support Technician	30.54
14170 - System Support Specialist	33.91
15000 - Instructional Occupations	
15010 - Aircrew Training Devices Instructor (Non-Rated)	24.34
15020 - Aircrew Training Devices Instructor (Rated)	29.45
15030 - Air Crew Training Devices Instructor (Pilot)	35.30
15050 - Computer Based Training Specialist / Instructor	25.60
15060 - Educational Technologist	36.66
15070 - Flight Instructor (Pilot)	35.30
15080 - Graphic Artist	23.23
15085 - Maintenance Test Pilot, Fixed, Jet/Prop	35.30
15086 - Maintenance Test Pilot, Rotary Wing	35.30

15088 - Non-Maintenance Test/Co-Pilot	35.30	
15090 - Technical Instructor	24.67	
15095 - Technical Instructor/Course Developer	30.17	
15110 - Test Proctor	19.92	
15120 - Tutor	19.92	
16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations		
16010 - Assembler	11.63***	
16030 - Counter Attendant	11.63***	
16040 - Dry Cleaner	13.55***	
16070 - Finisher, Flatwork, Machine	11.63***	
16090 - Presser, Hand	11.63***	
16110 - Presser, Machine, Drycleaning	11.63***	
16130 - Presser, Machine, Shirts	11.63***	
16160 - Presser, Machine, Wearing Apparel, Laundry	11.63***	
16190 - Sewing Machine Operator	14.23***	
16220 - Tailor	14.87***	
16250 - Washer, Machine	12.22***	
19000 - Machine Tool Operation And Repair Occupations		
19010 - Machine-Tool Operator (Tool Room)	26.62	
19040 - Tool And Die Maker	31.72	
21000 - Materials Handling And Packing Occupations		
21020 - Forklift Operator	24.41	
21030 - Material Coordinator	26.13	
21040 - Material Expediter	26.13	
21050 - Material Handling Laborer	22.23	
21071 - Order Filler	17.50***	
21080 - Production Line Worker (Food Processing)	24.41	
21110 - Shipping Packer	22.89	
21130 - Shipping/Receiving Clerk	22.89	
21140 - Store Worker I	14.14***	
21150 - Stock Clerk	19.59	
21210 - Tools And Parts Attendant	24.41	
21410 - Warehouse Specialist	24.41	
23000 - Mechanics And Maintenance And Repair Occupations		
23010 - Aerospace Structural Welder	36.54	
23019 - Aircraft Logs and Records Technician	28.55	
23021 - Aircraft Mechanic I	34.99	
23022 - Aircraft Mechanic II	36.54	
23023 - Aircraft Mechanic III	37.93	
23040 - Aircraft Mechanic Helper	24.01	
23050 - Aircraft, Painter	33.04	
23060 - Aircraft Servicer	28.55	
23070 - Aircraft Survival Flight Equipment Technician	33.04	
23080 - Aircraft Worker	30.77	
23091 - Aircrew Life Support Equipment (ALSE) Mechanic I	30.77	
23092 - Aircrew Life Support Equipment (ALSE) Mechanic II	34.99	
23110 - Appliance Mechanic	33.04	
23120 - Bicycle Repairer	26.32	
23125 - Cable Splicer	49.70	
23130 - Carpenter, Maintenance	27.79	
23140 - Carpet Layer	30.77	
23160 - Electrician, Maintenance	31.42	

23181 - Electronics Technician Maintenance I	35.43
23182 - Electronics Technician Maintenance II	38.04
23183 - Electronics Technician Maintenance III	40.28
23260 - Fabric Worker	28.55
23290 - Fire Alarm System Mechanic	34.99
23310 - Fire Extinguisher Repairer	26.32
23311 - Fuel Distribution System Mechanic	34.99
23312 - Fuel Distribution System Operator	26.32
23370 - General Maintenance Worker	24.12
23380 - Ground Support Equipment Mechanic	34.99
23381 - Ground Support Equipment Servicer	28.55
23382 - Ground Support Equipment Worker	30.77
23391 - Gunsmith I	26.32
23392 - Gunsmith II	30.77
23393 - Gunsmith III	34.99
23410 - Heating, Ventilation And Air-Conditioning Mechanic	31.94
23411 - Heating, Ventilation And Air Contidioning Mechanic (Research Facility)	33.36
23430 - Heavy Equipment Mechanic	35.66
23440 - Heavy Equipment Operator	28.39
23460 - Instrument Mechanic	34.99
23465 - Laboratory/Shelter Mechanic	33.04
23470 - Laborer	22.23
23510 - Locksmith	33.04
23530 - Machinery Maintenance Mechanic	30.29
23550 - Machinist, Maintenance	29.76
23580 - Maintenance Trades Helper	21.83
23591 - Metrology Technician I	34.99
23592 - Metrology Technician II	36.54
23593 - Metrology Technician III	37.93
23640 - Millwright	29.76
23710 - Office Appliance Repairer	33.04
23760 - Painter, Maintenance	32.08
23790 - Pipefitter, Maintenance	30.87
23810 - Plumber, Maintenance	29.15
23820 - Pneudraulic Systems Mechanic	34.99
23850 - Rigger	34.99
23870 - Scale Mechanic	30.77
23890 - Sheet-Metal Worker, Maintenance	34.99
23910 - Small Engine Mechanic	30.77
23931 - Telecommunications Mechanic I	40.83
23932 - Telecommunications Mechanic II	42.64
23950 - Telephone Lineman	34.99
23960 - Welder, Combination, Maintenance	33.79
23965 - Well Driller	34.99
23970 - Woodcraft Worker	34.99
23980 - Woodworker	26.32
24000 - Personal Needs Occupations	
24550 - Case Manager	22.70
24570 - Child Care Attendant	14.07***
24580 - Child Care Center Clerk	17.54***
24610 - Chore Aide	19.57
24620 - Family Readiness And Support Services	22.70

Coordinator		
24630 - Homemaker	22.70	
25000 - Plant And System Operations Occupations		
25010 - Boiler Tender	31.92	
25040 - Sewage Plant Operator	25.85	
25070 - Stationary Engineer	31.92	
25190 - Ventilation Equipment Tender	21.91	
25210 - Water Treatment Plant Operator	25.85	
27000 - Protective Service Occupations		
27004 - Alarm Monitor	23.50	
27007 - Baggage Inspector	17.65***	
27008 - Corrections Officer	23.76	
27010 - Court Security Officer	23.76	
27030 - Detection Dog Handler	19.74	
27040 - Detention Officer	23.76	
27070 - Firefighter	24.04	
27101 - Guard I	17.65***	
27102 - Guard II	19.74	
27131 - Police Officer I	29.13	
27132 - Police Officer II	32.38	
28000 - Recreation Occupations		
28041 - Carnival Equipment Operator	18.30	
28042 - Carnival Equipment Repairer	20.05	
28043 - Carnival Worker	13.07***	
28210 - Gate Attendant/Gate Tender	21.82	
28310 - Lifeguard	13.43***	
28350 - Park Attendant (Aide)	24.40	
28510 - Recreation Aide/Health Facility Attendant	17.81	
28515 - Recreation Specialist	30.23	
28630 - Sports Official	19.44	
28690 - Swimming Pool Operator	23.44	
29000 - Stevedoring/Longshoremen Occupational Services		
29010 - Blocker And Bracer	30.77	
29020 - Hatch Tender	30.77	
29030 - Line Handler	30.77	
29041 - Stevedore I	28.55	
29042 - Stevedore II	33.04	
30000 - Technical Occupations		
30010 - Air Traffic Control Specialist, Center (HFO) (see 2)	46.07	
30011 - Air Traffic Control Specialist, Station (HFO) (see 2)	31.77	
30012 - Air Traffic Control Specialist, Terminal (HFO) (see 2)	34.99	
30021 - Archeological Technician I	16.28***	
30022 - Archeological Technician II	18.22	
30023 - Archeological Technician III	22.56	
30030 - Cartographic Technician	23.25	
30040 - Civil Engineering Technician	29.77	
30051 - Cryogenic Technician I	24.73	
30052 - Cryogenic Technician II	27.31	
30061 - Drafter/CAD Operator I	16.28***	
30062 - Drafter/CAD Operator II	18.22	
30063 - Drafter/CAD Operator III	20.31	
30064 - Drafter/CAD Operator IV	24.99	
30081 - Engineering Technician I	16.65***	
30082 - Engineering Technician II	18.70	

30083 - Engineering Technician III	21.71	
30084 - Engineering Technician IV	26.89	
30085 - Engineering Technician V	32.90	
30086 - Engineering Technician VI	39.41	
30090 - Environmental Technician	23.25	
30095 - Evidence Control Specialist	22.33	
30210 - Laboratory Technician	20.09	
30221 - Latent Fingerprint Technician I	24.73	
30222 - Latent Fingerprint Technician II	27.31	
30240 - Mathematical Technician	23.63	
30361 - Paralegal/Legal Assistant I	21.49	
30362 - Paralegal/Legal Assistant II	26.62	
30363 - Paralegal/Legal Assistant III	32.56	
30364 - Paralegal/Legal Assistant IV	39.39	
30375 - Petroleum Supply Specialist	27.31	
30390 - Photo-Optics Technician	23.75	
30395 - Radiation Control Technician	27.31	
30461 - Technical Writer I	22.33	
30462 - Technical Writer II	27.31	
30463 - Technical Writer III	33.05	
30491 - Unexploded Ordnance (UXO) Technician I		29.28
30492 - Unexploded Ordnance (UXO) Technician II		35.43
30493 - Unexploded Ordnance (UXO) Technician III		42.46
30494 - Unexploded (UXO) Safety Escort		29.28
30495 - Unexploded (UXO) Sweep Personnel		29.28
30501 - Weather Forecaster I	24.99	
30502 - Weather Forecaster II	30.41	
30620 - Weather Observer, Combined Upper Air Or Surface Programs	(see 2)	20.31
30621 - Weather Observer, Senior	(see 2)	22.56
31000 - Transportation/Mobile Equipment Operation Occupations		
31010 - Airplane Pilot	35.43	
31020 - Bus Aide	15.74***	
31030 - Bus Driver	23.27	
31043 - Driver Courier	20.61	
31260 - Parking and Lot Attendant	14.72***	
31290 - Shuttle Bus Driver	18.21	
31310 - Taxi Driver	16.29***	
31361 - Truckdriver, Light	22.59	
31362 - Truckdriver, Medium	24.50	
31363 - Truckdriver, Heavy	26.29	
31364 - Truckdriver, Tractor-Trailer	26.29	
99000 - Miscellaneous Occupations		
99020 - Cabin Safety Specialist	17.27***	
99030 - Cashier	14.62***	
99050 - Desk Clerk	15.51***	
99095 - Embalmer	31.88	
99130 - Flight Follower	29.28	
99251 - Laboratory Animal Caretaker I	21.70	
99252 - Laboratory Animal Caretaker II	23.78	
99260 - Marketing Analyst	28.86	
99310 - Mortician	31.88	
99410 - Pest Controller	25.79	
99510 - Photofinishing Worker	15.39***	

99710 - Recycling Laborer	23.25
99711 - Recycling Specialist	28.90
99730 - Refuse Collector	20.64
99810 - Sales Clerk	17.27***
99820 - School Crossing Guard	15.50***
99830 - Survey Party Chief	22.01
99831 - Surveying Aide	14.78***
99832 - Surveying Technician	19.33
99840 - Vending Machine Attendant	18.46
99841 - Vending Machine Repairer	23.65
99842 - Vending Machine Repairer Helper	18.46

***Workers in this classification may be entitled to a higher minimum wage under Executive Order 14026 (\$17.75 per hour) or 13658 (\$13.30 per hour). Please see the Note at the top of the wage determination for more information. Please also note that the minimum wage requirements of Executive Order 14026 and 13658 are not currently being enforced as to contracts or contract-like instruments entered into with the federal government in connection with seasonal recreational services or seasonal recreational equipment rental for the general public on federal lands. The minimum wage requirements of Executive Order 14026 also are not currently being enforced as to any contract or subcontract to which the states of Texas, Louisiana, or Mississippi, including their agencies, are a party.

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: \$5.55 per hour, up to 40 hours per week, or \$222.00 per week or \$962.00 per month

HEALTH & WELFARE EO 13706: \$5.09 per hour, up to 40 hours per week, or \$203.60 per week, or \$882.27 per month*

*This rate is to be used only when compensating employees for performance on an SCA-covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor, 3 weeks after 10 years, and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (See 29 CFR 4.173)

HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least \$27.63 per hour (or at least \$684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am. If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

**** HAZARDOUS PAY DIFFERENTIAL ****

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder.

All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

**** UNIFORM ALLOWANCE ****

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of \$3.35 per week (or \$.67 cents per day). However, in those instances where the uniforms furnished are made of ""wash and wear"" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial

laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

**** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS ****

The duties of employees under job titles listed are those described in the ""Service Contract Act Directory of Occupations"", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

**** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) ****

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

- 1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).
- 2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.
- 3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).
- 4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or

disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.

5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.

6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the ""Service Contract Act Directory of Occupations"" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))."